

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RAYANNE MARIE INGRAM,

Petitioner

VS.

ROBERTO SCHOLL,

Respondent

) Case Number: FMS-19-387272

) Hearing Date: April 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Rayanne Marie Ingram (Mother) and Respondent Roberto Scholl (Father). The minor child subject to this proceeding is Xavier Robert Scholl (DOB: 09/04/18).
- 2) On February 18, 2026, Father filed a Request for Order seeking modification of the existing child custody and visitation orders. The existing order, filed on January 18, 2023, awards joint legal custody to both parents and sole physical custody to Mother. In addition, Father was awarded parenting time on the 2nd and 4th Thursdays from 3:00 p.m. – Fridays at 11:00 a.m., and on the 1st and 3rd weekends from Fridays at 6:00 p.m. – Sunday at 6:00 p.m. Father seeks the following modifications:
 - a. Joint physical custody.
 - b. Week 1: Friday 6:00 p.m. – Sunday 6:00 p.m.; Monday 6:00 p.m. – Wednesday 6:00 p.m.; and Thursday 6:00 p.m. – Friday 6:00 p.m.
 - c. Week 2: Monday 6:00 p.m. – Wednesday 6:00 p.m.

- d. Week 3: Friday 6:00 p.m. – Sunday 6:00 p.m.; Monday 6:00 p.m. – Wednesday 6:00 p.m.; and Thursday 6:00 p.m. – Friday 6:00 p.m.
 - e. Week 4: Monday 6:00 p.m. – Wednesday 6:00 p.m.
 - f. Week 5 (Alternating): Monday 6:00 p.m. – Wednesday 6:00 p.m.
 - g. A holiday schedule.
- 3) On March 23, 2026, Mother filed a Responsive Declaration wherein she asks the Court to deny Father's requests and the maintain the existing orders.
 - 4) On April 6, 2026, the Court referred the parties to Family Court Services (FCS) Mediation on April 13, 2026 and set a review hearing on April 30, 2026. The parties did not reach an agreement during FCS Mediation.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.
- 2) Father's request to modify child custody to joint legal and joint physical custody is GRANTED.
- 3) Father's request to modify the existing parenting plan is GRANTED. Commencing, May 1, 2026, Father's parenting time with the minor child shall be on a 2/2/3 schedule:
 - a. Week 1 (starting the week of May 3, 2026):
 - i. Mother – Monday/Tuesday
 - ii. Father – Wednesday/Thursday
 - iii. Mother – Friday/Saturday/Sunday
 - b. Week 2 (starting the week of May 10, 2026):
 - i. Father – Monday/Tuesday
 - ii. Mother – Wednesday/Thursday
 - iii. Father – Friday/Saturday/Sunday
 - c. The schedule set forth above will alternate following this pattern thereafter. Exchanges shall occur at 6:00 p.m., on Tuesdays, Thursdays and Sundays.

- 1 4) Father's request for a holiday schedule is DENIED. Mother and Father are encouraged to work
2 cooperatively together to establish a holiday schedule on their own. If they are unable to agree on
3 a holiday schedule, then they shall follow the parenting time schedule ordered herein.
- 4 5) Mother and Father may make modifications to this parenting time schedule by mutual written
5 agreement (i.e., email, text, or on paper).
- 6 6) All prior orders, not in conflict with the orders made herein, shall remain in full force and effect.
- 7 7) The Court will prepare the Findings and Order After Hearing.